

Page 45. l. 13, to 19. marg. Claus. in dorf. 11 E. 3. pars 2. m. 11. &c. hath no such words as are there quoted. P. 60. l. 9. marg. 22 lib. Ass. pl. 52: hath nothing in it for which it is cited. The case of *Redland contra Spinke, coram Rege & Consilio*, l. 20. cited to be in Rot. Pat. part. 2. 38 E. 3. m. 13. & l. 23. *Ralph Brantingham's* case, cited to be Rot. Pat. part. 1. 39 E. 3. m. 13. are not to be found in those Membranes or Rolls, upon my diligentest perusal of them, being mistakes or misquotations.

Cap. 5. p. 60, & 61. (*Of the Honourable Court of Star-chamber*;) abound with several mistaken numbers of membranes, misquotations, and some grosser mistakes, which I cannot pretermitt, though that Court be suppressed.

Page 60. l. 37. Rot. Claus. 16 R. dorf. m. 11. the Abbot of St. *Augustines* case, is truly cited: & Pat. 6 H. 5. and the case of *William Godred* and his wife against *H. S.* (I found in m. 7. of that Roll, which he omits;) In Pat. 7 H. 5. (m. 12. omitted by him) I found the case between *Thomas Weddile* and others; against *Johan Manors* and others for certain *Manors*, for which there were suits depending *coram Rege & Consilio suo*; and that sequestrations of the *Manors* were granted by consent of the parties into the Kings hands to preserve the peace; till a certain time, by which those suits might be determined: But all these suits before the King and his Council for the Right, Title to the *Wrec, Manors, Lands* in question, I conceive to be only held before them in Parliament, not in *Star-chamber*; (named not in these records) which intermeddled not with rights, Titles to *Liberties, Manors* or *Free-holds*, as *Parliaments* usually did, but only with *misdeemeanors, crimes*, which were *mala in se*, or *mala prohibita*, as the Statute of 3 H. 7. c. 1. and himself in these his *Institutes* resolve, p. 62, 63.

* See Rylce his Placita Parliamentaria.

Processus inter Jacobum Daudeley & Elizabethum uxorem Nicholai Daudeley coram Consilio Regis.

Ibid. l. 41. An. 41 E. 3. Rot. Claus. in a Bill of Complaint exhibited to the King by *Elizabeth* the widow of *Nich. Audeley* plaintiff, against *John Audeley* defendant, who appeared before the Kings Council, viz. the Chancellor, Treasurer, Justices, and others, assembled en le Chamber des Escoiers pres de la rechetes. In which case, as the Author omits the *membrana* of the Roll, viz. m. 12, 13. here supplied: so he is culpable of many mistakes therein; 1. In making *Jane Audeley* Defendant in this case, instead of *James Audeley*. 2ly. In placing this case under the Title of the Honourable Court of *Star-chamber*, *Coram Rege & Consilio suo*: as properly belonging to, and determined by that Court as such: when as the very beginning of the Record assures us, it was, *Al Parlement nostre Seigneur le Roy tenuz a Westminster le quint jour de May, l'an de son regne 40.* wherein *Elizabeth* femme *Monf. Nich. Daudeley* pursue a nostre Seigneur le Roy, to have an estate of 400 marks a year settled on her, according to Contracts and Agreements made with her Mother *Alice* Countesse of *Bogan*, before her marriage with his sonne *Nicholas*, which assurance he refused to make; for which she prayed remedy of the King in Parliament, not in the *Star-chamber*; Whereupon, nostre Seigneur le Roy fist venir le dit *Monf. James* devant son Conseil, cest assavoir, Chancelier, Tresorier, Justices et autres Sages assemblez in la Chambre de Escoiers, &c. (where they met for this purpose as his Council, or a Committee in Parliament, not as a *Star-chamber Court*.) Et sur ce le dit *Monf. James* se mis haute & bas en la agard et Ordenance nostre Seigneur le Roy et de son Conseil de les pletres suivoites, et le dit *Elizabeth* auynt: The whole debate, proceedings and award made therein by the King and his Council are recited in the Roll at large, with the penalty if not performed by the Defendant, against whom they awarded damages to the Complainant; After which, the performance of the award was acknowledged by both parties before the Council, and in the *Chancery*, and the acquittance of the money paid therein enrolled in *Chancery*: In fine, (the Parliament being ended) la dite *Elizabeth* detent en propre persone en la dit Chancelerie, (not *Star-chamber*) et pria jour outre, quel jour luy est done a sa request. So as this case hath no relation to the *Star-chamber* as a Court, but only as to a place where those Lords met as a Committee of Parliament to hear and end this Petition delivered to the King in Parliament.

Hbb

Ibid.